CITY OF OPA-LOCKA

"The Great City"

Clerk's Action Summary Minutes
Regular Commission Meeting
February 11, 2009
7:00 p.m.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. CALL TO ORDER:

Vice Mayor Myra L. Taylor called the meeting to order at 7:03 p.m. on Wednesday, February 11, 2009 in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida 33054.

2. ROLL CALL:

The following members of the City Commission were present: Commissioner Rose Tydus, Commissioner Timothy Holmes, Commissioner Dorothy Johnson and Vice Mayor Myra L. Taylor. Also in attendance were: Interim City Manager Bryan K. Finnie, City Attorney Burnadette Norris-Weeks and City Clerk Deborah S. Irby. Mayor Joseph L. Kelley arrived at 7:08 p.m.

3. INVOCATION:

The Invocation was delivered by Commissioner Rose Tydus.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. APPROVAL OF AGENDA:

Clerk Irby advised of the request to amend the agenda changing the language to first reading ordinance 14A1 and including the following resolutions under new items (agenda item 12):

LANGUAGE CHANGE – AGENDA ITEM 14A1:

14A1: AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING THE DUAL DESIGNATION OF NW 32ND AVENUE FROM THE 127TH STREET CANAL NORTH TO NW 135TH STREET AS "THE HONORABLE JOHN RILEY STREET"; PROVIDING FOR REPEAL OF ALL

ORDINANCES IN CONFLICT; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE.

It was moved by Commissioner Johnson, seconded by Commissioner Tydus to approve the language change as reflected above.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Tydus	Yes
Commissioner Johnson	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Not present

ITEMS TO BE ADDED TO THE AGENDA UNDER NEW ITEMS:

12-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ESTABLISH AN OPERATING BUDGET OF THIRTY THOUSAND DOLLARS ($30,000.00) FOR THE DEDICATION CEREMONY FOR "PRESIDENT BARACK OBAMA AVENUE"; FURTHER DIRECTING THE CITY MANAGER TO PROVIDE THE CITY COMMISSION WITH THE TOTAL EXPENDITURES FOR THE DEDICATION CEREMONY WITHIN SIXTY (60) DAYS. *Sponsored by D.J.*

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to amend the agenda to include the above resolution as item 12-1.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Commissioner Holmes	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Not present

12-2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, DIRECTING THE CITY MANAGER TO WORK IN CONJUNCTION WITH COMMUNITY CAPACITY BUILDERS, INC. TO RAISE FUNDS FOR THE ERECTION OF A MONUMENT OF PRESIDENT BARACK OBAMA TO BE PLACED NEAR PRESIDENT BARACK OBAMA AVENUE WITHIN THE CITY OF OPA-LOCKA. *Sponsored by D.J.*

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to amend the agenda to include the above resolution as item 12-2.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Tydus	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Not present

Upon arrival at the meeting, Vice Mayor Taylor relinquished the gavel to Mayor Kelley.

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

Manager Finnie deferred agenda item 15-5 from the Consent Agenda until the next regular meeting because he didn't have the opportunity to individually meet with all members of the City Commission. Additionally, there is a mathematical error in the document

Commissioner Holmes pulled agenda items 15-3, 15-11 and 15-15; Commissioner Tydus pulled agenda items 15-2 and 15-7.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

7. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

8. APPROVAL OF MINUTES:

Regular Commission Meeting – January 28, 2009

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to approve the minutes of the Regular Commission Meeting of January 28, 2009.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Not present

9. DISTRICT ONE - COUNTY COMMISSIONER REPORT:

Mark Brown, Assistant to Commissioner Barbara Jordan, District 1 County Commissioner, came forward and reported that the Tot Lot was approved by the Committee and will go before the entire board on March 3, 2009. He stated that he contacted Miami-Dade County Public Works Department regarding the overhanging of trees on NW 37th Avenue. He announced the Annual Valentine's Day Hop for seniors sponsored by Commissioner Jordan on Friday, February 13, 2009 from 5:00 p.m. to 8:00 p.m. at Landmark Auditorium.

He further provided a brief update on the Beautification and Rehabilitation Project in the City of Opa-locka and provided information on the Black History Program sponsored by Commissioner Jordan during the month of February at the North Dade Regional Library.

Commissioner Johnson expressed her appreciation to Commissioner Jordan for her commitment in providing police officers and the Black History mobile unit for the Streetnaming Dedication in honor of President Barack Obama on February 16, 2009.

After hearing that the board for the noise abatement at the Opa-locka Executive Airport was not in effect, Commissioner Holmes requested that Mr. Brown research this matter.

Commissioner Johnson stated that she believed the resolution to rename the Opa-locka Executive Airport to the Opa-locka – Barack Obama Executive Airport is scheduled to go before the Board of County Commissioners on February 17, 2009 and asked whether it would be beneficial for the community to show up at the meeting.

10. PUBLIC PRESENTATION:

1. Japanese Video Presentation - Japanese Interview with Commissioner Holmes regarding Ordinance 07-19, Section 16.33: Code of Ordinance providing for a ban on wearing Saggy Pants Apparel in City Buildings and Parks.

2. Alvin Burke
   re: welfare of the city

Alvin Burke of 540 Curtiss Drive, Opa-locka, Florida came forward and expressed his concerns relating to the type of legal services provided by the legal department. Of concern to Mr. Burke was the discussion during the January 28, 2009 commission meeting relating to former Police Chief James Wright in which the City Attorney indicated that it would be in the best interest of this city to give Mr. Wright what he wants which consisted of a form 1099 although Mr. Wright was a former employee and not a contractor. Additionally, he spoke relating to the lack of respect from the City Attorney toward the City Commission during the meetings. He further suggested that the Commission review Ordinance No. 89-2 and Section 38 of the City of Opa-locka charter

dealing with the City Attorney and hire a full-time attorney as oppose to a part-time attorney.

10a. CITIZENS' FORUM:

1. Alvin Burke of 540 Curtiss Drive, Opa-locka, Florida, appeared before the City Commission and stated that he was proud of President Barack Obama; however, due to the economic crisis affecting the nation including the residents of Opa-locka he was not in favor of the city spending $30,000.00 on the streetnaming dedication ceremony because that money could be utilized to assist residents in this city.

2. Inaudible of 14565 NW 26th Street, Miami, Florida, came forward and spoke on the demolition of the Old Water Plant which has been an eyesore in the community for a long time. He said he didn't understand why the city was paying Langan Engineering to review it versus having the demolition contractor responsible for everything as a part of the bid process.

Mayor Kelley advised that the resolution for Langan Engineering was pulled and there will be discussion relating to the concern.

11. ACTION ITEMS (items from consent agenda pull list):

15-2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING THE ANNUAL SALARY FOR THE INTERIM CITY MANAGER, BRIAN K. FINNIE, IN THE AMOUNT OF ONE HUNDRED AND TEN THOUSAND DOLLARS ($110,000.00) AND AUTHORIZING A BENEFIT PACKAGE FOR THE INTERIM CITY MANAGER COMMENSURATE WITH ALL OTHER APPOINTED OFFICIALS OF THE CITY OF OPA-LOCKA. *Sponsored by T.H.*

It was moved by Commissioner Tydus, seconded by Commissioner Holmes to pass the above resolution.

Commissioner Tydus expressed her concerns with the process, or lack thereof, when Mr. Finnie was appointed Interim City Manager. The proper process was not followed at that time and she doesn't think it is being followed this time.

She asked the sponsor of the resolution what was the merit and motivation behind this resolution?

During the meeting when former City Manager Jannie Beverly resigned, Commissioner Holmes recalled amending the agenda to accept the recommendation of Mrs. Beverly to appoint Bryan Finnie as Interim City Manager. At that time, the salary for the Interim City Manager was not discussed.

Commissioner Tydus asked, what is Mr. Finnie's current salary?

Ezekiel Orji, Finance Director for the City of Opa-locka stated that Mr. Finnie's current salary is $85,000.00.

Commissioner Tydus stated that the $85,000.00 salary was not determined by the Commission when Mr. Finnie was appointed Interim City Manager which should have been done. Additionally, the resolution provides for a benefit package commensurate with that of other appointed officials which was not included in the agenda package for the Commission to consider; therefore, she doesn't know what she would be voting on as far as the benefit package is concerned.

She continued by asking the City Attorney if the Commission is following the proper procedure as far as the hiring of Mr. Finnie and approving the salary?

Attorney Norris-Weeks advised that the Charter provision requires that the City Manager is hired by resolution and this would be the first formal resolution. She said Commissioner Holmes was referring to a motion that was made accepting the resignation and further to appoint Mr. Finnie as Interim City Manager with the review in one year. A formal resolution was not prepared for that but the Commission did take action. In terms of the process, there is a process that's set forth which requires a committee. This is the same process used for the selection of the City Attorney and City Clerk where each commissioner appoints someone. The Commission didn't address the salary issue which this resolution does and that would make it consistent with the charter provision.

Commissioner Tydus requested further clarification from the City Attorney regarding her statement that this resolution would make it consistent.

Attorney Norris-Weeks stated that the resolution would make it consistent with the requirement for a resolution which is in the charter. In terms of the process for the selection, Mr. Finnie does have the designation of Interim City Manager and the process for the selection of a permanent position is outlined in the Code of Ordinances which calls for a selection committee and that has not been done.

Commissioner Tydus stated that she understood that Mr. Finnie was appointed as the Interim City Manager and ironic to the dais that particular night, interim for 12 months as far as she's concerned constitutes permanent; but she's only one vote. With that in mind, whatever the salary is at this time, she doesn't think it should be up for review until that probationary period has arrived which the Commission initially set at 12 months.

According to the city's charter, Commissioner Johnson asked the City Attorney what section was she referring to as it relates to the Interim City Manager because she was only able to find the section which talks about the City Manager?

Attorney Norris-Weeks advised that there is no specific reference to Interim City Manager; there is no process for the interim. However, there is a selection process for City Manager.

Commissioner Johnson stated that the charter doesn't provide a process for an Interim City Manager and she was looking for the City Attorney to put that on record. At this point, the city doesn't have a permanent City Manager and perhaps this can be one of the items to bring back when the charter is being reviewed for recommended changes.

Commissioner Holmes expressed his frustration relating to the $85,000.00 salary for the Interim City Manager because the Commission has not agreed on an amount. At the meeting when Jannie Beverly resigned as City Manager, he amended the agenda based on Mrs. Beverly's recommendation for the Commission to consider Bryan Finnie as Interim City Manager. As a result, Mr. Finnie was appointed by the majority of the Commission as Interim City Manager; therefore, his salary should have remained the same as Mrs. Beverly at $125,000.00 per year until the Commission decided otherwise.

Mayor Kelley reminded the Commission of the recently adopted ordinance on how they will conduct business and treat each other and staff with respect. From this point forward, he suggested that the Commission treat each other with respect.

Commissioner Tydus stated that the record will reflect that the legislation passed by the Commission on this item was the hiring of Bryan Finnie as Interim City Manager. The record will also reflect that there was no discussion with regards to a benefit package or salary which is totally out of order and should have been discussed before he was hired. As it relates to the discussion about the $125,000.00 salary, she said that Mrs. Beverly was the City Manager for 6 years and her starting salary was not $125,000.00.

Of concern to Mayor Kelley was not the salary but the benefit package commensurate with that of other appointed officials. He asked, what does that benefit package translate to because there is nothing attached to the resolution?

Attorney Norris-Weeks advised that Commissioner Holmes requested that she included the language in the resolution so that the benefit package is consistent with other appointed officials. She then requested of the City Clerk's Office information on whatever a benefits package would be and there's a resolution in 2002 providing for a benefits package for appointed officials with a cost of living adjustment in salary, retirement, automobile allowance of $650.00 per month, annual leave of 25 days, sick leave of 15 days, basic and life insurance policies provided to all employees with the city paying the required premium, supplemental life and disability policy equal to 7% of annual base salary, participation in ICMA/RC retirement plan of other designated retirement plan with city paying 10% of base salary into retirement account, senior management service class designation in the Florida Retirement System, issuance of a cellular phone or monthly phone allowance of $150.00, credit card with $150.00 per month limit for job related expenses, payment by city of professional dues, fees and subscriptions, payment by city for professional development, workshops, seminars to include registration fees, travel, lodging and related expenses, severance pay equal to 1 month aggregate salary. The benefits provided herein shall only be paid or provided on a pro rata basis for the period while the employee serves in the respective capacity. She

further stated that this resolution goes back to 2002 and there may have been something else that predates it but this is all she was able to find.

Mayor Kelley stated that everything the City Attorney mentioned relating to the benefit package should have been included in the resolution. He continued by asking, what would the benefit package total in a dollar amount?

Sharlene Boyd, Director of Human Resources for the City of Opa-locka came forward and advised that the benefit package could total anywhere from $35,000.00 to $40,000.00 for the year.

She continued by providing clarification on the $85,000.00 salary paid to Bryan Finnie by indicating that Mr. Finnie was hired approximately 2.5 weeks prior to Jannie Beverly resigning as City Manager. The $85,000.00 was the salary Mr. Finnie was hired in for his position in the City Manager's Office.

Dr. Orji added that the $85,000.00 salary was for special advisor to the City Manager; therefore, that salary was for that position and not for the Interim City Manager position.

Mayor Kelley reiterated that his concern is not the salary as reflected in the resolution but the benefit package because that package is not outlined in the resolution. He further requested that the benefit package be incorporated into the resolution to prevent from leaving the city opened to future liability.

Commissioner Holmes informed the City Attorney that she prepared the resolution and was responsible for incorporating the benefits making sure all the information was included.

There being no further discussion, the motion passed by a 3-2 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	No
Mayor Kelley	No

Commissioner Johnson directed the City Attorney to bring back a resolution relating to contracts. She asked, is the City Clerk the only employee with a contract?

Attorney Norris-Weeks advised that she was unaware as to whether the City Clerk had a contract because she tried to get the contract, if there is one, but wasn't given one; therefore, she is assuming there is no contract. She said that would be a question for the City Clerk.

Based on her knowledge that the City Clerk has a contract, Commissioner Johnson directed the City Attorney to bring back a resolution so that no other employee will receive a contract.

3. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA URGING THE MIAMI-DADE COUNTY COMMISSION TO REQUIRE SPECIFIC AND IMMEDIATE RECOMMENDATIONS FOR NOISE ABATEMENT FROM THE COUNTY ESTABLISHED "AIRCRAFT NOISE ABATEMENT ADVISORY TASK FORCE FOR THE OPA-LOCKA EXECUTIVE AIRPORT" AND FURTHER DIRECTING THE CITY CLERK TO FORWARD THIS RESOLUTION TO MIAMI-DADE COUNTY REQUESTING IMMEDIATE ACTION. *Sponsored by T.H.*

Commissioner Holmes deferred the above resolution because the language was not what he requested.

7. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO MAKE PAYMENT TO MIAMI-DADE COLLEGE, STUDENT FINANCIAL SERVICES IN THE AMOUNT OF FOUR THOUSAND TWO HUNDRED NINETY-FIVE DOLLARS AND FORTY-ONE CENTS ($4,295.41) ON BEHALF OF OPA-LOCKA POLICE DEPARTMENT OFFICER ROBERT BELL, FOR SUCCESSFUL COMPLETION OF THE BASIC LAW ENFORCEMENT ACADEMY, PAYABLE FROM ACCOUNT NO. 21-521312. *Sponsored by C.M.*

The above resolution was read by title by Attorney Norris-Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Out of room
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

11. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE AN AGREEMENT WITH LANGAN ENGINEERING AND ENVIRONMENTAL SERVICES, INC., FOR PROFESSIONAL ENVIRONMENTAL SERVICES RELATED TO THE DEMOLITION AND CLEARANCE OF THE OLD WATER PLANT, IN AN AMOUNT NOT TO EXCEED TWENTY FOUR THOUSAND DOLLARS ($24,000.00), IN A CONTRACT FORM ACCEPTABLE TO

THE CITY ATTORNEY, PAYABLE FROM ACCOUNT NO. 64-533822. *Sponsored by C.M.*

The above resolution was read by title by Attorney Norris-Weeks.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above resolution.

Commissioner Holmes asked for clarification on the above resolution relating to the comments made under citizens' forum about having one contractor perform all services related to the demolition and clearance of the old water plant.

Manager Finnie explained that everyone has an opinion in how they do business and in this instance, he prefers to do business in two (2) steps. The first step is to use the services of Langan Engineering to identify the steps for tearing down the plant; but most importantly to identify where the pipes are located. The city will be doing entrepreneur negotiations when moving to the next phase by asking a company to come in and demolish the plant that the city knows where the pipes are and have the specs for. Also, the city will enter into negotiations with that company on the sale of scrap metal.

He further stated that he feels comfortable having a road map of what he needs to do and then sitting down with the second party and getting the best deal possible for this city. By going one direct route, the contractor has the ability to adjust the price that they're going to demolish the building based on what they expect to receive for the sale of scrap metal. He preferred handling this matter one step at a time, but on an expedited basis.

Vice Mayor Taylor asked for clarification as it relates to the services provided by Langan Engineering and the bid process for the demolition.

Manager Finnie explained that once the information is received from the engineer, the city would be better able to issue an RFP.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

15. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ACCEPTING THE PROPOSAL FROM CALVIN, GIORDANO & ASSOCIATES, INC. IN RESPONSE TO RFP NO. 08-1208 – PLANNING AND ZONING CONSULTING SERVICES; FURTHER AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE AN AGREEMENT WITH CALVIN, GIORDANO & ASSOCIATES, INC., TO PROVIDE PLANNING AND ZONING

CONSULTING SERVICES TO THE CITY OF OPA-LOCKA, IN A CONTRACT FORM ACCEPTABLE TO THE CITY ATTORNEY. *Sponsored by C.M.*

The above resolution was read by title by Attorney Norris-Weeks.

It was moved by Commissioner Tydus, seconded by Vice Mayor Taylor to pass the above resolution.

Commissioner Tydus asked, how many proposals did the city receive for this RFP?

Manager Finnie stated that the city received three (3) proposals, staff reviewed the proposals, it went through the process and staff is recommending the proposal of Calvin, Giordano & Associates, Inc.

Commissioner Tydus asked, was a scoring process used in the selection process? If so, she did not see that information in the agenda packet.

Manager Finnie advised that a scoring sheet was used in the selection process.

Mayor Kelley suggested that the City Manager provide the Commission with the scoring sheet for the selection process.

He further asked, would this resolution allow for the city to have a planner which it doesn't have now?

Manager Finnie replied, yes a certified planner.

Commissioner Holmes asked for clarification on the services to be provided by the firm.

Manager Finnie advised that the city would utilize the services of this firm when encountering a land use or zoning change and a certified planner is needed to sign off on whatever is being recommended.

Commissioner Holmes asked, are there any outstanding items that require the city to utilize this firm?

Manager Finnie stated that the city would be utilizing the firm's services within the next 30 days for several Planning Council items.

Commissioner Holmes stated that the purpose for these questions is because the city currently has an employee who will be a certified planner in May 2009 and he wanted to make sure that the services would be utilized prior to May.

There being no further discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor Yes

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

12. NEW ITEMS:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ESTABLISH AN OPERATING BUDGET OF THIRTY THOUSAND DOLLARS ($30,000.00) FOR THE DEDICATION CEREMONY FOR "PRESIDENT BARACK OBAMA AVENUE"; FURTHER DIRECTING THE CITY MANAGER TO PROVIDE THE CITY COMMISSION WITH THE TOTAL EXPENDITURES FOR THE DEDICATION CEREMONY WITHIN SIXTY (60) DAYS. *Sponsored by D.J.*

The above resolution was read by title by Attorney Norris-Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Commissioner Johnson advised that the operating budget for the dedication ceremony may be offset by private contributions as monies are still coming in. Additionally, there are many volunteers providing in-kind services at no cost to the city.

Vice Mayor Taylor applauded Commissioner Johnson for her efforts on this event which is history in the making. She stated that this event is not frivolous spending because it actually cost much more than $30,000.00 but monies are still coming in to offset that amount.

Commissioner Johnson stated that the $30,000.00 is actually a high number but the actual cost is lower. She previously directed staff to allow her to see everything in order to provide the Commission with accountability within 60 days with receipts.

She continued by asking, is the amount less?

Manager Finnie replied, it's a conservative budget.

Commissioner Tydus asked, what is the total amount in monetary commitments and how much has come in so far?

Commissioner Johnson replied, approximately $15,000.00 in commitments and about $2,000.00 has been received.

Commissioner Tydus expressed her concerns relating to having the budget for this event established before hand.

Commissioner Johnson explained that originally the dedication ceremony was to take place in August 2009 but she wanted to make sure that the city was the first in the nation; therefore, the date was moved up to February. Additionally, the event was planned in 2 1/2 weeks.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, DIRECTING THE CITY MANAGER TO WORK IN CONJUNCTION WITH COMMUNITY CAPACITY BUILDERS, INC. TO RAISE FUNDS FOR THE ERECTION OF A MONUMENT OF PRESIDENT BARACK OBAMA TO BE PLACED NEAR PRESIDENT BARACK OBAMA AVENUE WITHIN THE CITY OF OPA-LOCKA. *Sponsored by D.J.*

The above resolution was read by title by Attorney Norris-Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Vice Mayor Taylor recommended that someone else other than the city take the lead on the monument.

Commissioner Johnson advised that the monument would be a fundraiser which would offset monies needed. This resolution doesn't require any funds from the city; it only allows her to work in conjunction with Community Capacity Builders, Inc. to raise funds for the monument. Therefore, there is no cost to the city at all.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

13. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

14. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING THE DUAL DESIGNATION OF NW 32ND AVENUE FROM THE 127TH STREET CANAL NORTH TO NW 135TH STREET AS "THE HONORABLE JOHN RILEY STREET"; PROVIDING FOR REPEAL OF ALL ORDINANCES IN CONFLICT; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by T.H.*

The above ordinance was read by title by Attorney Norris-Weeks.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above ordinance on first reading.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

2. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA APPROVING THE DUAL DESIGNATION OF PERI STREET FROM SEAMAN AVENUE TO NW 27TH AVENUE AS "THE HONORABLE ROBERT KNAPP STREET"; PROVIDING FOR REPEAL OF ALL ORDINANCES IN CONFLICT; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by T.H.*

The above ordinance was read by title by Attorney Norris-Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above ordinance on first reading.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

Vice Mayor Taylor left the meeting at 8:30 p.m. Prior to leaving, she made her individual appointment of Robert Knapp to the Charter Review Board of which the City Attorney had run reference on Mr. Knapp's ability to serve because he is a city employee.

B. SECOND READING/PUBLIC HEARING:

C. RESOLUTION(S):

15. ADMINISTRATION:

CONSENT AGENDA:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ENCOURAGING SUPPORT FOR THE "HOTSPOT" ANTI-CRIME CAMPAIGN THROUGHOUT THE CITY OF OPA-LOCKA. *Sponsored by M.T.*

4. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, RECOGNIZING THE MONTH OF OCTOBER 2009 AS "STOP THE VIOLENCE" MONTH WITHIN THE CITY OF OPA-LOCKA AND ENCOURAGING PARTNERSHIPS WITH THE MIAMI GARDENS / OPA-LOCKA YOUTH PREVENTION COALITION AND OTHER COMMUNITY BASED ORGANIZATIONS. *Sponsored by D.J.*

6. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, RATIFYING THE ACCEPTANCE AND EXPENDITURE OF A GRANT AWARD FROM THE U.S. DEPARTMENT OF JUSTICE PROJECT SAFE NEIGHBORHOODS (PSN) GRANT IN THE AMOUNT OF TWENTY-FIVE THOUSAND DOLLARS ($25,000.00), FOR THE DEVELOPMENT OF LAW ENFORCEMENT INITIATIVES AIMED AT REDUCING GANG VIOLENCE AND OTHER GUN VIOLENCE ABATEMENT INITIATIVES. *Sponsored by C.M.*

8. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE A LEASE AGREEMENT WITH PETERSON'S HARLEY-DAVIDSON OF MIAMI FOR LEASING OF TWO (2) FLHP POLICE MOTORCYCLES FOR A PERIOD OF TWENTY FOUR (24) MONTHS AT A TOTAL COST OF TWENTY THOUSAND FOUR HUNDRED DOLLARS ($20,400.00), PAYABLE FROM ACCOUNT NO. 21-521649. *Sponsored by C.M.*

9. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE AN AGREEMENT WITH KIMLEY-HORN INC. FOR PROFESSIONAL CONSULTING SERVICES IN AN AMOUNT NOT TO EXCEED SIXTY EIGHT THOUSAND DOLLARS ($68,000.00), IN A CONTRACT FORM ACCEPTABLE TO THE CITY ATTORNEY, PAYABLE FROM ACCOUNT NO. 44-541810. *Sponsored by C.M.*

10. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ACCEPTING AN AWARD OF GRANT FUNDS FROM THE SOUTH FLORIDA WATER MANAGEMENT DISTRICT (SFWMD) IN AN AMOUNT UP TO FIFTY THOUSAND DOLLARS ($50,000.00) AND AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE AN AGREEMENT WITH THE SOUTH FLORIDA WATER MANAGEMENT DISTRICT (SFWMD) FOR ACCEPTANCE OF GRANT AWARD. *Sponsored by C.M.*

12. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE A CONTRACT RENEWAL WITH TELVUE FOR OPA-TV PROGRAMMING AND RELATED SERVICES, FOR A PERIOD OF THREE (3) YEARS, AT A TOTAL COST OF SEVEN THOUSAND NINE HUNDRED FIFTY DOLLARS ($7,950.00), PAYABLE FROM ACCOUNT NO. 14-512646. *Sponsored by C.M.*

13. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ACCEPTING THE OFFER PRESENTED BY ARAMARK UNIFORM & CAREER APPAREL, LLC TO PURCHASE THE CITY OWNED RIGHT-OF-WAY LOCATED IMMEDIATELY TO THE SOUTH-EAST OF THE INTERSECTION BETWEEN VETERENS WAY AND DOUGLAS ROAD, IN THE AMOUNT OF FORTY THOUSAND DOLLARS ($40,000.00); FURTHER AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE A PURCHASE AND SALE AGREEMENT FOR SAID PROPERTY, IN A CONTRACT FORM ACCEPTABLE TO THE CITY ATTORNEY. *Sponsored by C.M.*

14. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ISSUE AN INVITATION FOR BID (IFB) FOR PROCUREMENT AND INSTALLATION OF AUDIO AND VIDEO EQUIPMENT FOR THE 2ND FLOOR COMMISSION CHAMBERS. *Sponsored by C.M.*

The above resolutions under the Consent Agenda were read by title by Attorney Norris-Weeks.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes passing the consent agenda resolutions.

The motion passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Vice Mayor Taylor	Not present
Commissioner Tydus	Yes
Mayor Kelley	Yes

A. CITY MANAGER'S REPORT:

Manager Finnie rendered his report to the Commission on the Strategic Plan; his attempt to restructure staff; and budget amendments. The Strategic Implementation Plan would be coming back to the Commission with the comments and corrections in the form of a report at the February 25, 2009 meeting. As a result of the Strategic Plan, internally he would be doing some restructuring and shifting staff in order to accomplish the goals & objectives which would begin with a staff briefing on February 17, 2009. Finally, he would be meeting with Dr. Orji and the Commission to start the budget amendment process.

Commissioner Johnson expressed her concerns relating to tractor trailers in residential areas; special permit for music and bringing back a resolution to control the volume and lack of police response; and taking a proactive approach to addressing the illegal dumping of trash throughout the city.

She requested that the City Manager have Christina Gordon promote Recycling Awareness to educate the residents because she noticed the recycling carts being utilized for garbage and to meet with staff every 2 weeks on all revenues coming into the city for the President Barack Obama Streetnaming Dedication. She also requested that the City Manager provide her with some possible dates to meet to discuss his evaluation. She expressed the importance of having the appointed officials evaluated for accountability.

Mayor Kelley also informed the City Manager of the tractor trailers in residential areas creating blind spots which could cause accidents. With regards to the volume of noise, although this issue predates the current City Manager, he said that one of the challenges is that many times the police officers are not aware of the permits issued even though it has gone through the process and signed off by both the City Manager and the Police Department. The Police Department should have a way of making sure the police officers on duty are aware of any special permits issued for gatherings. Furthermore, he expressed his concern relating to the type of music being played which is not appropriate.

Mayor Kelley asked for an update on the union contracts.

Manager Finnie advised that the city is still in the process of contract negotiations.

Mayor Kelley said the purpose for his questions relating to the union contracts is because the City Manager spoke about budget amendments.

Manager Finnie informed the Commission that the issues with the union are not with dollars but other items.

With regards to the beautification at Ingram Park, Mayor Kelley asked for the completion date to have a re-grand opening.

Manager Finnie requested that Mayor Kelley allow him to provide that information at a later time once he has spoken to staff.

As it relates to the organizational restructuring that came up in the Vision Setting Workshop, Mayor Kelley said he understood the City Manager to say under his report that staff would go through orientation on the Strategic Plan.

Manager Finnie replied, correct. He said he would be presenting the plan to the entire staff.

Mayor Kelley noticed that the Commission had concerns in certain areas specifically his concerns relating to combining the parks, DJJ, etc. and he doesn't know if that would be a part of the City Manager's presentation to staff; but he is not comfortable with that layout as presented.

Manager Finnie stated that everyone in that layout from parks to DJJ and the other programs are a part of the team and will be at that presentation; however, the guts of that presentation has to do with Community Development, Public Works, fiscal, Human Resources and implementation of programs. He believed that he can still move forward and hopefully by the time they move forward on February 17, he would have the opportunity to meet with the commissioners for input on the Human Services Network.

Mayor Kelley asked, other than the Department of Corrections are there any other companies that do clean up in the city?

Manager Finnie stated that the city has a vendor who cleans up the alleys on a contractual basis which is My Lawn Service.

Both Mayor Kelley and Commissioner Johnson stated that they had noticed other companies cleaning up the city.

In sharing the Strategic Plan with staff, Commissioner Johnson suggested that the City Manager extract from it because there's a lot which cannot be accomplished in one year. She recommended that the City Manager set some priorities and bring it back to the Commission for approval. Additionally, she would like to see timelines for the critical items.

Manager Finnie said he would take Commissioner Johnson's direction; however, he does realize some of the items on the Strategic Plan cannot be accomplished within 12 months. Respectfully, the plan is structured as goals and objectives and it is his opinion that the department directors and City Manager's Office have to lead by action and by raising the standard. The goal from a management standpoint is to raise the standard.

After hearing the comments from the City Manager, Commissioner Johnson then recommended that the City Manager extract from the Strategic Plan those items that could not be accomplished within a year and share it with the Commission.

Mayor Kelley asked for an update on the preparation of the stimulus package.

Manager Finnie stated that the Commission would have the stimulus package by Friday, February 13, 2009.

After just recently learning of the proper protocol for inviting the President, Commissioner Johnson said she would work with several individuals to get representation or a live cast video from the President for the streetnaming dedication Ceremony on Monday, January 16, 2009.

Commissioner Tydus asked for an update on the light repairs on Ali-baba Avenue and Opa-locka Boulevard.

Manager Finnie advised that there are two sets of lights; the FPL lights and the lights that go up about 20 feet. Of the lights that go up about 20 feet, approximately 65% are working. The problem with those lights is that someone got in and pulled all of the wires and they've been out for years; secondly, there was a contractor who did some work on the FPL lights and severed the power.

Fritz Armand, Public Works Director for the City of Opa-locka came forward and stated that the lights the city are responsible for have to be rewired and FPL will conduct an assessment on their lights for repairs.

Commissioner Tydus asked for status of the street sweeper on Perviz Avenue. Additionally, she had noticed residents sweeping the debris from their yards into the drains and recommended that the residents be notified in the newsletter of the consequences.

Manager Finnie informed Commissioner Tydus that he would look into the issue with the street sweeper.

B. ACCOUNTS PAYABLE:

The City Commission instructed the city to pay its bills.

16. OFFICIAL BOARD REPORTS:

17. CITY ATTORNEY'S REPORT:

Attorney Norris-Weeks encouraged the Commission to set aside some dates for the workshops on the city's charter and code of ordinance.

Commissioner Holmes asked for an update on his request at the last commission meeting for a resolution deleting the GED/High School Diploma requirement for specific jobs and

hiring some of the individuals in the city who do not have a high school diploma or GED but are able to work.

Attorney Norris-Weeks advised that she had been in contact with the City Manager's Office and the City Manager has some ideas on how to address those concerns.

Commissioner Holmes informed the City Manager that he still wants a report on his request at the last commission meeting for the City Manager to conduct a study or look into the many complaints from citizens about their high water bills.

He continued by expressing his concerns relating to the homeless in Opa-locka and suggested something be done to address the problem.

As mentioned at a previous meeting, Commissioner Holmes encouraged the City Manager, City Clerk and City Attorney to work on bringing in revenue to this city (i.e. the City Clerk's Office was responsible for a $50,000.00 grant). Perhaps the City Attorney's Office could look at bringing in a grant to hire individuals from the city.

Commissioner Johnson said she would be working with Mayor Carlos Alvarez on the Gun Buy Back initiative and requested that a resolution be brought back at the next meeting. She directed the City Attorney to provide her with some dates to meet with regards to her evaluation.

She further encouraged both the City Attorney and City Clerk to attend the Miami-Dade County League of Cities meetings.

In response to Alvin Burke's comment under Citizens Forum stating "the citizens of Opa-locka deserve better" making reference to the City Attorney, Commissioner Tydus stated that in her opinion the city doesn't deserve better when they already have the best. Having first hand knowledge, she said the City Attorney is well respected in both Broward and Miami-Dade Counties. She publicly provided the City Attorney with her vote of confidence and encouraged her to continue the good work.

Commissioner Johnson concurred with Commissioner Tydus on her statement regarding the City Attorney.

As it relates to scheduling of the workshops, Mayor Kelley stated that he previously mentioned about waiting until March because of the many activities taking place in February. The intention was to have the City Clerk check everyone's schedule and come up with possible dates for the workshops in early March.

18. CITY CLERK'S REPORT:

Commissioner Johnson commended the City Clerk and staff for writing the $50,000.00 grant and for the hard work in preparing for the Streetnaming Dedication.

She requested the City Clerk provide her with some dates to go over merit. For the record, she requested that the City Clerk include in the agenda package any future registered lobbyist.

She further directed the City Clerk, City Attorney and City Manager to have quarterly meetings.

Commissioner Tydus requested that the City Clerk provide her within 30 days a copy of the audio and/or video where she disrespected anyone on the dais, anyone in the audience or anyone in the community because it should be on record.

Mayor Kelley publicly thanked Sha'mecca Lawson of the City Clerk's Office for a job well done.

19. MAYOR/COMMISSION REPORT:

Commissioner Holmes provided a report on his efforts to raise money to send to Miami Crime Stoppers to do a reenactment of the Liberty City Shootings to assist in capturing the person(s) responsible. Secondly, he thanked the Opa-locka Police Department for their presence during several city events and encouraged them to continue staying involved in the community. Finally, he thanked the IT Department and Cristina Gordon for the presentation of the Japanese video.

Commissioner Johnson also thanked Cristina Gordon for everything she had done thus far on the streetnaming dedication. She thanked the Commission for their support on the streetnaming dedication.

After receiving an email from a concerned citizen, Commissioner Johnson said she would be working with several legislators on FCAT issues. Additionally, she met with the City Manager and the librarian regarding the Library being closed on Fridays.

She further reported that through her organization, Opa-locka will be one of the first cities in the State of Florida to have the Ben Carson Reading Room; she would be meeting with a group of editors on forming a local newspaper of which she would bring a resolution back to have the "Opa-locka/Miami Gardens Herald".

Lastly, she expressed her concerns relating to an article in the newspaper which briefly mentioned her name and she felt she was disrespected by the reporter who contacted her.

Commissioner Tydus reported that she attended the Miami-Dade Black Caucus of Local Elected Officials installation of officers of which Commissioner Johnson was installed as secretary/treasurer and Mayor Kelley as president. Also, she attended Mayor Carlos Alvarez's State of the County Address.

She further provided information to be displayed on OPA-TV on a summer program named Running Start for girls.

Mayor Kelley reported attending the Miami-Dade Delegation Meeting to present the city's legislative package in which most of city's projects deal with infrastructure. As a follow up to that, a lot of people have been talking about a stimulus package and the city must make sure they have all its projects together, particularly as it relates to jobs. The decision has not been made as to how the funds will come but the city must be prepared including the possibility of traveling. He also attended the State of the County Address on February 10, 2009 and some of the concerns were the orange line coming down NW 27th Avenue; the Miami-Dade County League of Cities meeting; and the Miami-Dade Black Caucus of Local Black Elected Officials which allowed him to be the President.

In moving forward, he suggested that the Commission keep in mind the possibility of traveling to Tallahassee and Washington, DC outside of Miami-Dade County Days. He directed the City Manager to keep that in mind as well so that he can set up the meetings.

20. OFFICIAL BOARD APPOINTMENTS:

Mayor Kelley asked for clarification as it relates to an employee citizen wanting to serve on the Charter Review Board.

Attorney Norris-Weeks advised that the person can serve on the board.

Prior to the leaving the meeting, Vice Mayor Taylor appointed Robert Knapp to the Charter Review Board.

Commissioner Johnson appointed Adrian Brantley to the Charter Review Board.

21. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Johnson, seconded by Commissioner Tydus to adjourn the meeting at 9:39 p.m.

MAYOR

ATTEST:

CITY CLERK